

INDIVIDUAL OPINION BY M. ANZILOTTI.

[*Translation.*]

Very much to my regret I do not concur in the opinion of the Court and it is my duty to say so. Since, in my view, a dissenting opinion should not be a criticism of that which the Court has seen fit to say, but rather an exposition of the views of the writer, I shall confine myself to indicating as briefly as possible what my point of view is and the grounds on which it is based.

1.—If the actual terms of the question put are taken and if regard is had to the fact that it has its origin in an application by the Free City of Danzig for admission to the International Labour Organization, the natural inference is that this question relates in the first place to the admission of the Free City into that Organization.

Since the International Labour Organization is governed by Part XIII of the Treaty of Versailles, it is in this Part that the provisions dealing with the admission of Members to the Organization and prescribing the qualifications required in order to become a Member of it, must be sought. The only provision relating to the admission of Members and the qualifications required for such admission is paragraph 2 of Article 387, according to which "the original Members of the League of Nations shall be the original Members of this Organization, and hereafter membership of the League of Nations shall carry with it membership of the said Organization". As there is no other article of Part XIII of the Treaty of Versailles relating directly or indirectly to the membership of the International Labour Organization, it is permissible, *prima facie*, to conclude that membership of the Organization is merely the corollary of that of Member of the League of Nations.

2.—It should however be observed that the request seems to proceed from a different hypothesis, namely, that it would be possible for the Free City to become a Member of the International Labour Organization independently of its admission

to the League of Nations. This is pointed to by the fact that the application of the Free City is addressed to the Labour Organization; the discussions which took place in the Governing Body of the International Labour Office and the written and oral statements submitted to the Court would also seem to confirm it.

As the hypothesis assumed by the request relates to a point of law, the Court cannot accept it without first ascertaining whether it is sound or not. It is clear that the Court cannot give an opinion based on a hypothesis which is contrary to treaties in force.

The first question to be decided therefore is: Does Part XIII of the Treaty of Versailles allow membership of the International Labour Organization to be acquired by other means than admission to the League of Nations?

3.—My answer is definitely in the negative. To my mind there is no doubt that the intention of the Parties to the Treaty of Versailles was that membership of the League of Nations and that of Member of the International Labour Organization should coincide, and to prevent a State or political community from becoming a Member of the International Labour Organization without at the same time being a Member of the League of Nations.

I am prepared to admit that Article 387, paragraph 2, taken literally, confines itself to indicating two categories of Members of the Organization and does not explicitly exclude the possibility of there being others. But since this clause is the only one in the whole of Part XIII which deals with membership of the International Labour Organization, and since it is impossible to adhere to a treaty except in the circumstances and under the conditions laid down for such adherence, the only possible conclusion is that there is no way of entering the International Labour Organization other than that indicated by Article 387, paragraph 2.

Moreover, it is hardly conceivable that the authors of the Treaty of Versailles would have preserved absolute silence in regard to the numerous and difficult questions to which the admission of new Members to the International Labour Organization would give rise, if such admission were possible otherwise than in the case contemplated by Article 387, paragraph 2,

which case is governed by Article 1 of the Covenant of the League of Nations. On the other hand, the Treaty of Versailles contains many indications in favour of the interpretation of Article 387, paragraph 2, set out above. Mention may be made of Article 23, letter *a*, of the Covenant of the League of Nations; paragraph 1 of the Preamble to Part XIII; Article 392; Article 422, etc.; from all these provisions it clearly appears that the International Labour Organization was conceived as an association between the Members of the League of Nations for the fulfilment of a mission indissolubly bound up with the mission of the League itself.

4.—In this way I reach the conclusion that the hypothesis upon which the request proceeds cannot be accepted by the Court, because it is in contradiction with the Treaty of Versailles.

Having stated this, the Court should, in my opinion, have declared that it could not give the opinion for which it was asked. To my mind, it is equally inadmissible for the Court to comply with a request based on a hypothesis which is legally unsound or for the Court to modify the request in order to bring it into harmony with what the Court holds to be the law in force. It would have been for the Council to alter the request in accordance with the Court's indications, if it thought fit to ask for an opinion on the basis of such indications.

This conclusion also seems indicated by considerations of another order. If it be granted that the only way of becoming a Member of the International Labour Organization is by admission to the League of Nations, the question which arises is whether the special legal status of the Free City of Danzig is such as to enable the Free City to become a Member of the League of Nations. Membership of the International Labour Organization being merely a necessary consequence of admission to the League of Nations, the question put by the request would be a preliminary or incidental question in the procedure for the admission of the Free City to the League of Nations. But the admission of Members is a matter falling within the exclusive jurisdiction of the Assembly; it would therefore seem that the Assembly alone could ask the Court for an advisory opinion on the question thus envisaged.

5.—The foregoing are the conclusions which follow if the request be construed in accordance with its natural meaning and the circumstances which led to the adoption of its wording.

It is however a matter for consideration whether the question put to the Court cannot be interpreted as though, leaving aside the matter of the admission of the Free City into the International Labour Organization, it only related to the compatibility of the features peculiar to the legal status of the Free City with the exercise by the Free City of the rights and the fulfilment by it of the obligations of Members of the International Labour Organization.

Although, as has been said above, the request seems to proceed from a different point of view, it is not perhaps altogether impossible to limit in this way the question submitted to the Court. At all events, only by adopting this standpoint could the Court deal with it.

6.—The question whether the special legal status of the Free City is compatible with membership of the International Labour Organization is in substance the question whether the fact that the Free City is placed under the protection of the League of Nations and that the conduct of its foreign affairs is in the hands of Poland is calculated to prevent the Free City from exercising the rights and performing the obligations attaching to membership of the Organization.

Nevertheless, the question must first be considered whether a State or political community the foreign relations of which are conducted by another State and which, therefore, does not enjoy absolute freedom in the field of international relations, is not, on this ground alone, unable to be a Member of the International Labour Organization.

There seems little room for doubt that the answer to this question is in the negative. Whatever interpretation be placed on paragraph 2 of Article 387 of the Treaty of Versailles, it is certain that, by the combined action of this clause and of the second paragraph of Article 1 of the Covenant of the League of Nations, not only States but also Dominions and Colonies which are fully self-governing are already and may become Members of the International Labour Organization.

This also follows from paragraph 1 of Article 421 of the Treaty of Versailles, which obliges Members of the International Labour Organization to apply conventions to which they have adhered "to their colonies, protectorates and possessions which are not fully self-governing". This restriction, which is unaccompanied by any other clause designed to ensure the application of conventions in the territories in question, is only reconcilable with the principle of the potential universality of the Organization formulated in paragraph 3 of the Preamble of Part XIII, because colonies, possessions or protectorates which are fully self-governing are able to become Members of the Organization.

Now what distinguishes Dominions and Colonies which are fully self-governing from States is, above all, the fact that such Dominions and Colonies, though enjoying a very wide measure of self-government, do not or do not necessarily possess the right themselves to conduct their foreign relations. The right of self-government which Article 1 of the Covenant considers as a condition necessary for admission to the League of Nations and on which Article 421, paragraph 1, of the Treaty of Versailles is based, can therefore only be a right relating to internal affairs, for otherwise the interpretation of this article would lead to absurd or contradictory results.

In the face of provisions so clear and definite, the only possible conclusion is that the fact that the Free City only enjoys a limited freedom in the field of international relations is not in itself incompatible with membership of the International Labour Organization.

7.—On the other hand, there is hardly room for doubt that the Free City can only be a Member of the International Labour Organization if Poland were to consent to its admission and if the competent organs of the League of Nations were not to make use of their right of veto. Whatever the juridical nature of the act whereby the Free City might enter the International Labour Organization, it is certain that this act would create international obligations for the Free City; accordingly, the provisions of Chapter I of the Convention of November 9th, 1920, are applicable.

It follows that any discussion as to the compatibility of any particular provision appertaining to the status of the Free City with Part XIII of the Treaty of Versailles must set out from the assumption that the Free City were a Member of the International Labour Organization with the consent of Poland and without opposition on the part of the competent organs of the League.

8.—It seems possible to understand this consent in two different ways.

In the first place, it may be thought that the question simply relates to the consent to be given by Poland to the admission of the Free City to the International Labour Organization, subject to all stipulations at present in force. In that case the question to be decided would be the following: Would such consent have the effect of placing the Free City in a position to take part in the activities of the International Labour Organization and to fulfil the obligations incumbent on its Members? This amounts to asking whether all the provisions which at present govern the relations between the Free City and Poland, more especially as regards the conduct of foreign relations, are compatible with the provisions of Part XIII of the Treaty of Versailles. It is easy to see that there are cases in which this compatibility is at least doubtful.

But this does not seem to be the question put. For it must be remembered that this question refers to the special legal status of the Free City as a whole; that is to say, also to the question whether that status permits or does not permit of modifications. This standpoint seems also to be in accordance with the views and wishes of the Parties concerned. It is certain that the representatives of Poland and of the Free City and the Director of the International Labour Office emphasized that there was no question of deciding a dispute, but of throwing light upon an obscure legal situation and of finding some way of enabling the Free City to benefit by the advantages of the International Labour Organization. For this reason I think that Poland's consent—if given—to the admission of the Free City to that Organization should be considered from a more general standpoint.

Two questions thus arise: (a) Has Poland the right to consent to the admission of the Free City to the International Labour Organization, even if such consent must involve a modification of the special legal status of the Free City as at present in force? (b) If so, what would, generally speaking, be the effects of such consent in regard to the special legal status of the Free City?

9.—*Ad* (a) The representatives of the Polish Government contended before the Court that the Convention of Paris rested on Article 104 of the Treaty of Versailles, and that consequently Poland and the Free City could not modify the Convention in such a way as to overstep the limits fixed by that article.

This contention seems to me to be unjustified. Article 104 of the Treaty of Versailles entrusts to the Principal Allied and Associated Powers the negotiation of the terms of a convention between the Polish Government and the Free City, and indicates the points with which the convention should deal or the objects which it should be designed to attain. Now this Convention—which is the Convention of Paris of November 9th, 1920—expressly provides, in Article 40, paragraph 1, for the possibility of modifications by agreement between Poland and the Free City. There is therefore nothing to prevent Poland from exercising the rights conferred upon her by this Convention; these rights, moreover, have been conferred upon her in her own interests, the interests of the Free City being sufficiently safeguarded by the protection of the League of Nations.

10.—*Ad* (b) This point having been established, and since the Free City would be a Member of the International Labour Organization with the consent of Poland—which consent, it is assumed, would not have been opposed by the League of Nations—the question which arises is no longer whether the present legal status of the Free City is compatible with membership of the International Labour Organization, but rather what modifications such membership would involve in the Free City's status as it is at present.

In regard to this, the following observations are called for.

There is no doubt that membership of the International Labour Organization involves the fulfilment of all the obligations

laid by Part XIII of the Treaty of Versailles upon Members of that Organization. Poland's consent, therefore, could not be given subject to limitations or reservations which would make it impossible for the Free City to fulfil any particular obligation. Rather may it be said that consent validly given would have the effect of authorizing the Free City to do all that is necessary to fulfil its duties, even if that implied a limitation of the rights at present belonging to Poland with regard to the conduct of Danzig's foreign relations. A consent which did not have this effect would not amount to consent.

On the other hand, when the fulfilment of obligations is not in question, but when it is a question of the exercise of rights which each Member is free to exercise or not, there is nothing to prevent Poland from retaining in relation to the Free City the powers and prerogatives conferred upon her by the stipulations in force. When a Member is free to do or to refrain from doing something, he must abstain from doing it if obligations validly entered into require it. Moreover, there is no reason why Poland's consent should be construed as going beyond an authorization to fulfil the duties of a Member; only an unequivocal expression of an intention of Poland could have effects going beyond such an authorization.

Of course, all this in no way prevents the question from being settled—subject to the League of Nations right of veto—by previous agreements between Poland and the Free City. I have simply intended to indicate what might be the general lines of such agreements and what would be the principles applicable if such agreements did not exist or did not deal with some particular point. On these lines the Court might have given the interested Parties the indications for which they asked and which alone would perhaps have enabled practical results to be reached.

II.—A general study of the question must necessarily stop at this point. I will merely refer by way of example or as an instance of application to some of the questions which have been discussed by the interested Parties.

It is, for instance, clear that from the standpoint which I have adopted, it is useless to consider whether participation in the General Conference of Members does or does not fall within the sphere of "foreign relations" within the meaning of Article 104 of the Treaty of Versailles and the Convention of Paris. One thing is certain, namely that the Members of the International Labour Organization must be able to take part in the General Conference and, should occasion arise, in the Governing Body of the International Labour Office. It is also certain that such participation must be in accordance with the rules laid down in Articles 389 and 393. Supposing that Danzig were to become a Member of the Organization with the consent of Poland, the latter could certainly not invoke against Danzig the rules at present in force regarding the representation of the Free City at international conferences in order to prevent it from appointing its own delegates—and this holds good even if it be admitted that the General Conference of Members falls within the category of international conferences. On the other hand, there is nothing to prevent the Free City from undertaking to submit the appointment of its own delegates for previous approval by the Polish Government.

Similarly, as regards the judicial settlement of disputes, if it be held that the jurisdiction established by Article 423 of the Treaty of Versailles takes precedence of any other jurisdiction provided for by particular agreements between Members, it must be admitted that Poland, by giving her consent to the admission of the Free City to the International Labour Organization, would in so doing consent to the substitution of the jurisdiction of the Court for that provided for in Article 103 of the Treaty of Versailles and Article 39 of the Convention of Paris, of course only as regards the disputes to which Article 423 relates. And the League of Nations, by not exercising its right of veto, would also renounce its right to raise any objection based on Article 103 of the Treaty of Versailles.

On the other hand, no modification seems necessary in so far as concerns the ratification of draft conventions prepared by the General Conference of representatives of Members and the filing of complaints under Article 411. It is certain that

each Member is free to ratify or not ; it is also certain that the reason why a convention is not ratified has no juridical importance. The Senate of the Free City, to which the right of ratification belongs, could therefore always ascertain whether Poland consented and should refuse to approve a draft convention if Poland's consent were not given. Similarly, there is nothing to prevent the Free City from abstaining from filing a complaint with the International Labour Office against another Member, if this cannot be done with the consent and through the intermediary of the Polish Government.

12.—Subject to the reservations and with the restrictions resulting from the foregoing, the conclusion at which I have arrived therefore is that the special legal status of the Free City of Danzig is such as to enable the Free City to be a Member of the International Labour Organization.

(Signed) D. ANZILOTTI.